

HEADNOTE

- “1. For a sufficient degree of certainty with regard to the validity of a patent for the court in the scope of an order for provisional measures (Art. 62 UPCA) a preponderant likelihood is necessary, but also sufficient.*
- 2. In order to determine a possibly unreasonable delay in seeking provisional measures (Art. 62 UPCA), it must first be asked when the claimant became aware of the (imminent) patent infringement; based on this, the point in time from which the request for provisional measures due to the infringement of the asserted unitary patent was possible before the UPC must be identified.*
- 3. The enforcement of a European Patent without unitary effect, which must be carried out separately in all member states, is therefore not an equivalent means of enforcing rights in the case of infringement compared to the enforcement of a unitary patent before the UPC.”*

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Compositions and methods for analyte
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Article 62 Provisional and protective measures

SUMMARY

The Local Division in Munich issued a procedural order in the context of an application for provisional measures. The patent at issue concerns compositions and methods for analyte detection. The court addressed three key legal points. First, it clarified the standard of validity required for provisional measures under Article 62 UPCA: a preponderant likelihood of validity is both necessary and sufficient — a higher degree of certainty is not required, but a lower one does not suffice. Second, the court set out how to determine whether a claimant has caused an unreasonable delay in seeking provisional measures: the starting point is when the claimant became aware of the (imminent) infringement, from which the earliest possible date to file a request before the UPC is identified. Third, the court held that enforcement of a European patent without unitary effect — which must be pursued separately in each designated member state — is not an equivalent means of enforcing rights compared to enforcement of a unitary patent before the UPC, a factor relevant to assessing urgency in provisional measures proceedings.